



SUPERIOR COURT OF SAN MATEO COUNTY

Probate - Probate

Courtroom 2C

Hearing Date: 08/12/2026 - 09:00 AM

08/03/2026

12:26 PM

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Judge: Novak, Lisa A.

Clerk: Ortega, Alexandrina

Reporter: Conde, Wendy

24-PRO-00236	IN RE THE MATTER OF: THE EUGENE D. SATRAP TRUST	DEMURRER TO PETITION TO APPOINT SUCCESSOR TRUSTEE AND TO RECOVER TRUST ASSETS FROM ESTATE OF DECEASED SUCCESSOR TRUSTEE AND/OR THIRD PARTY OBTAINED BY BREACH OF FIDUCIARY DUTY, CONVERSION, CONSTRUCTIVE FRAUD, UNJUST ENRICHMENT, AND FOR DECLARATORY R FIRST AMENDED PETITION TO APPOINT SUCCESSOR TRUSTEE AND TO RECOVER TRUST ASSETS FROM ESTATE OF DECEASED SUCCESSOR TRUSTEE AND/OR THIRD PARTY OBTAINED BY UNDUE INFLUENCE, ELDER ABUSE, BREACH OF FIDUCIARY DUTY, CONVERSION, CONSTRUCTIVE FRAUD, UNJUST EN
Line 7, 8	Petitioner: Satrap, Robert Jordan (TERRERI, HERBERT L) Decedent: SATRAP, EUGENE D. (TERRERI, HERBERT L) Respondent: Satrap, Vicki L. (SHEPPARD, ESQ., SARAH B.)	Hearing on Demurrer Petition Hearing

Tentative Ruling:

APPEARANCE OPTIONAL

Demurrer OVERRULED in part, SUSTAINED in part.

The Court OVERRULES demurrer as to the request for appointment of successor trustee.

The Demurrer as to the remaining causes of actions are SUSTAINED with leave to amend.



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The Demurrer as to Causes of Action A through H are SUSTAINED because the Amended Petition fails to state a cause of action (Code Civ. Proc., § 430.10, subd. (e)). The Amended Petition fails to allege any facts in support of its allegations that Vicki Satrap, either in her individual capacity or in that as trustee of the Satrap Living Trust, or SATRAP PROPERTIES II, LLC; or VICKI L. SATRAP, as Member/Manager of SATRAP PROPERTIES II, LLC has engaged in any of the causes of action described as A through H.

Moreover, the Amended Petition is untimely on its face based on the one-year statute of limitations under Code of Civil Procedure section 366.2, because Eugene E. Satrap, the purported wrongdoer died in 2015. The longest applicable statutes of limitations are four (4) years, and the initial Petition was filed in 2024, so the Amended Petition is untimely. Delayed discovery was not adequately pled. Petitioner's argument as to why the statute of limitations has not run is not persuasive. Petitioner was clearly on notice as to the terms of the EDS trust as of 2014, including his position as a contingent beneficiary should his father not exercise his power of appointment.

The Amended Petition also fails to comply with Rule of Court 2.111, in that the causes of Action A through H are not properly numbered and they do not properly state the party or parties to whom each is directed. The special demurrer is therefore SUSTAINED as independent, additional grounds.

The Request for Judicial Notice is GRANTED as to the existence of the documents as records of the court and the county recorder's office and not for the truth of any matter asserted therein.

Plaintiff has leave to amend within 10 days of the service of the notice of entry of this order. Defendant is to serve the notice of entry of this order within 5 days of entry of this order.

25-PRO-00220	Guardianship of Tristan Yi Nuo Guan	cont from 5/28/26
Line 9	Petitioner: Chen, Jie (Pro Se) Ward: Guan, Tristan Yi Nuo Guardian: Chen, Jie (Pro Se)	Inventory and Appraisal

Tentative Ruling:

APPEARANCE ORDERED (Zoom allowed)

Jie Chen is ordered to appear and explain why Inventory and Appraisal, Letters of Guardianship, Inventory & Appraisal and How to Object to Inventory & Appraisal have not been filed. If Jie Chen fails to appear, the Court intends to issue an order to show cause to Jie Chen as to why she should not be removed as guardian of the estate of Tristan Yi Nuo Guan. The hearing on the order to show cause would be set on November 19, 2026 at 9:00 am The Court sets a status hearing for the filing of the accounting on February 16, 2027 at 9:00 am pursuant to Probate Code 2620.